

**25CMCV00736 25CMCV00736**

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-02

Motion: PLAINTIFF'S MOTION FOR LEAVE TO AMEND

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Case Number: 25CMCV00736 Hearing Date: September 2, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

MICHAEL O. DEVAUGHN,

Plaintiff,

vs.

FLORENCE

MONIQUE DEVAUGHN, et al.,

Defendants.

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CASE NO: 25CMCV00736

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION FOR LEAVE TO AMEND

Dept.

A

DATE:

September 2, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 05/05/2025

TRIAL:

None set

MOVING

PARTY: Plaintiff Michael O.

DeVaughn

RESPONDING

PARTY: None

## 1. Background

Plaintiff Michael O.

Devaughn ("Plaintiff") alleges that on May 31, 2022, he and defendant Florence Monique DeVaughn were married. Plaintiff alleges that at that time and thereafter, defendants Florence Monique DeVaughn and Michael Reed Bryant (collectively, "Defendants") were engaged in an extramarital affair. Plaintiff alleges that Defendant Florence Monique DeVaughn misrepresented her intentions at the time of marriage in order to induce Plaintiff to provide her with financial support.

On August 22, 2025, default was entered against each of Defendants. January 23, 2026, Defendant Florence Monique Devaughn filed an answer. On May 21, 2026, this answer was stricken.

## 2. Discussion

Plaintiff

moves for leave to file a First Amended Complaint ("FAC"). Plaintiff contends he seeks to modify the amount of damages stated in the original complaint, although he has not provided a copy of the proposed FAC. No parties have opposed this motion.

Under Code of

Civil Procedure § 472, a party may amend their pleading once without leave of court before the answer, demurrer, or motion to strike is filed. Here, although Defendant Florence Monique Devaughn filed an answer, that answer was stricken because she was already in default at the time of filing. Each of Defendants is in default, and no answer is currently on file for either of Defendants.

Therefore, pursuant to Code of Civil Procedure § 472, Plaintiff need not obtain leave of court to file a FAC.

Although

California Rules of Court, rule 3.1324 ordinarily requires a motion to amend a pleading to include a copy of the proposed amended pleading, as previously noted, Plaintiff need not obtain leave of court to file a FAC at this time.

Rule 3.1324 is therefore inapplicable.

The court will

grant Plaintiff leave to amend the complaint.

### 3. Conclusion

Based on the

foregoing, the court GRANTS Plaintiff leave to file a First Amended Complaint.

At the time that Plaintiff files and serves the First Amended Complaint,

default will be opened as to each of Defendants. Plaintiff is ordered to file a First Amended Complaint not later than September 22, 2026, and is further ordered to re-serve Defendants in the same manner as is required for service of a summons and complaint. The court will continue the Order to Show Cause re Entry of Default and Default Judgment to November 23, 2026, 8:30 a.m. in Department A. Plaintiff is ordered to comply with the requirements of California Rule of Court 3.110 and 3.1800 with respect to obtaining default and default judgment against Defendants if they fail to respond to the First Amended Complaint.

IT IS SO ORDERED.

DATED: September 2, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court